

CORRESPONDENCE · 3 FEB 2002

Untruths (2)

TYPE	DATE	PARTIES
Correspondence	3 Feb 2002	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

"Untruth" note — Collorafi · 3 February 2002

Overview: short argument note, added to the case file, which juxtaposes several statements attributed to McDonald's in order to highlight their contradictions.

Key points

The note brings together three elements. First, the out-of-court expert report written by "SEPT" at McDonald's request allegedly states that "McDonald's helps franchisees who are in financial difficulty". Second, in its brief to the Court of Cassation, McDonald's allegedly wrote that, without the termination of the agreements, Mr Collorafi "would have made even greater losses". Finally, the note recalls that the judges allegedly stated, in the judgment of 8 March 2000, that the rents were incomprehensible in a period of "economic war". The document thus sets the franchisor's discourse of support against its own pleadings and the findings of the court.

Significance

A document from the cassation phase: it summarises, from the franchisee's point of view, the inconsistencies attributed to the opposing party in order to support his challenge.

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Source: bernardcollorafi.org/en/documents/note-untruths-collorafi-mcdonalds-cassation-2002/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.